

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Montana

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will identify policy questions and technical assistance requests. These will be sent to our federal partners.	01/31/2025
2	The lead agency will consult with our federal partners and receive assistance with policy questions and any identified technical assistance.	04/30/2025
3	a) The lead agency will evaluate whether subsidy policy revisions are required. If needed, the Montana Administrative Procedure Act (MAPA) must be followed. b) The lead agency will implement programming into the new computer database, Montana Acquired Quality Childcare System (MAQCS).	09/30/2025
4	The lead agency will train scholarship contractors on the policy revisions and MAQCS programming. The lead agency will develop consumer education on the policy revisions.	10/31/2025
5	With MAQCS online, the lead agency will evaluate if additional training for scholarship contractors is needed. The lead agency will make consumer education available.	12/31/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through December 31, 2025.
- The Lead Agency does not include the rationale for the policy to allow providers to charge families additional amounts above the required co-payment, including required data and a demonstration of how the policy promotes affordability and access for families, as required by 98.45(b)(5). (Plan Questions 3.1.2ei and 3.1.2eii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will identify policy questions and technical assistance requests. These will be sent to our federal partners.	02/28/2025
2	The lead agency will consult with our federal partners and receive assistance with policy questions and any identified technical assistance.	05/31/2025
3	The lead agency will evaluate whether subsidy policy revisions are required. If needed, the Montana Administrative Procedure Act (MAPA) must be followed. The lead agency will implement programming into the new computer database, Montana Acquired Quality Childcare System (MAQCS).	09/30/2025
4	The lead agency will train scholarship contractors on the policy revisions and MAQCS programming. The lead agency will develop consumer education on the policy revisions.	10/31/2025
5	With MAQCS online, the lead agency will evaluate if additional training for scholarship contractors is needed. The lead agency will make consumer education available.	12/31/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through December 31, 2025.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through December 31, 2025.

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will identify policy questions and technical assistance requests. These will be sent to our federal partners.	02/28/2025
2	The lead agency will consult with our federal partners and receive assistance with policy questions and any identified technical assistance.	05/31/2025
3	The lead agency will evaluate whether subsidy policy revisions are required. If needed, the Montana Administrative Procedure Act (MAPA) must be followed. The lead agency will implement programming into the new computer database, Montana Acquired Quality Childcare System (MAQCS).	09/30/2025
4	The lead agency will train scholarship contractors on the policy revisions and MAQCS programming. The lead agency will develop consumer education on the policy revisions.	10/31/2025
5	With MAQCS online, the lead agency will evaluate if additional training for scholarship contractors is needed. The lead agency will make consumer education available.	12/31/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through July 31, 2026.

Overall Target Completion Date: 08/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will review current sources of data and determine data needs to evaluate how to meet direct service requirements. The lead agency will identify policy questions and technical assistance requests. These will be sent to our federal partners.	07/31/2025
2	The lead agency will consult with our federal partners and receive assistance with policy questions and any identified technical assistance.	09/30/2025
3	The lead agency will evaluate whether subsidy policy revisions are required. If needed, the Montana Administrative Procedure Act (MAPA) must be followed. The lead agency will implement programming into the new computer database, Montana Acquired Quality Childcare System (MAQCS).	03/31/2026
4	The lead agency will train scholarship contractors on the policy revisions and MAQCS programming. The lead agency will develop consumer education on the policy revisions.	06/30/2026
5	With MAQCS online, the lead agency will evaluate if additional training for scholarship contractors is needed. The lead agency will make consumer education available.	08/31/2026

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt family child care providers and license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii). Please note the Lead Agency has an approved waiver for portions of this requirement through July 31, 2026.

Overall Target Completion Date: 05/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	FFN inspections are now being posted, but verification needs to occur to ensure that all FFN inspections are posted to our consumer website.	04/30/2025

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of and response to emergencies due to food and allergic reactions for license-exempt family child care and license-exempt in-home care providers, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4av, 5.3.4avi, 5.3.4bv, and 5.3.4bvi)
- The Lead Agency annual inspection for license-exempt family child care providers does not include enforcement of a standard on prevention and response to emergencies from food and allergic reactions, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 05/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	This requirement was added to the FFN checklist for completing annual inspections. It is currently being implemented, but is not yet required by ARM rules.	04/30/2025
2	This item will be completed once the new rule package is implemented after the 2025 legislative sessions is complete.	05/31/2025

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of shaken baby syndrome and abusive head trauma for license-exempt family child care and license-exempt in-home care providers, as required by 98.41(a)(1)(vi). (Plan Questions 5.3.6av and 5.3.6avi)
- The Lead Agency annual inspection for license-exempt family child care providers does not include enforcement of a standard on prevention of shaken baby syndrome and abusive head trauma, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 05/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	This requirement was added to the FFN checklist for completing annual inspections. It is currently being implemented, but is not yet required by ARM rules.	04/30/2025
2	This item will be completed once the new rule package is implemented after the 2025 legislative sessions is complete.	05/31/2025